# Rights & the Non-Derogable Floor

*Rights attach to people. Emergency authority is limited; remedies and non-derogable protections continue.*

Article I · §1.2, §1.3-§1.4, §1.10, §1.12-§1.13, §1.16-§1.18

## Every person

Independent judicial remedy is self-executing. Courts appoint publicly funded counsel where adequate legal aid is not funded; costs cannot make relief illusory. Personal sovereignty, liberty and equality constrain every level of government.

§1.1 — full provision →

## Privacy and justice

Entry into a home, searches, surveillance and data collection require consent or prior independent judicial authorization on specific grounds. Fair-trial protections include examination and challenge of evidence and the methods producing it. Closure and sealing must be narrowly necessary, with published grounds and independent review; there is no fixed ten-year constitutional sealing allowance.

§1.7 — full provision →

## Emergency derogation

An executive declaration within its domain lasts at most fourteen days. Continuation requires a statute with a fixed expiration. Neither declaration nor authorization may be renewed or substantially repeated. Every declaration receives mandatory expedited independent judicial review. All measures lapse with their authorization; Monitors retain authority.

§1.16 — full provision →

## The six non-derogable rights

Torture; slavery; habeas corpus; public trial; retroactive punishment; non-refoulement. None may be derogated. No emergency measure may be applied discriminatorily on the listed protected grounds. The public-trial right allows only the narrow closure and sealing permitted by §1.12. Non-refoulement protects people regardless of status or conduct.

§1.16.a — full provision →



*A theoretical constitutional design project — not the law of any existing nation.*